

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 4, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 4, 2023, a complaint was filed with this Agency by Ms. A.A.A. (hereinafter, the complainant) against Ms. B.B.B. (hereinafter, the respondent) for not having properly addressed her right to erasure.

The complainant states that on May 30, 2023, after getting a tattoo at the studio of the respondent, the latter recorded a video of the result, and that on July 20, 2023, she became aware that this video was published without her consent on social media (at least, TikTok and Instagram).

Therefore, the complainant sent a message through those social media platforms to the respondent requesting that the video be removed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for her analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated, in summary, that the complainant consented to the recording of the video. She also stated that "Regarding the receipt of the request for the erasure of the video, we inform you that we never received a written or electronic email requesting the exercise of her right. Comments on social media are not fully viewed, as they generally refer to opinions about the work. (...) At the time of receiving this notification from you, the video has been removed from the social network."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding that the complainant's claims were satisfied. Consequently, on November 4, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent the opportunity to be heard, so that within ten working days she could present any arguments she deemed appropriate.

The respondent indicated that "(...) the established channels for dealing with customers (complaints, claims, etc.) are email or regular mail (i.e., informed channels), to ensure direct communication (...). Nevertheless, as soon as we became aware of her request, we removed the video (...) when we had real knowledge of the request (...). It is true that we did not consider it appropriate, after receiving the request from the AEPD, to respond to the exercise of the interested party's right through social media; perhaps that was our mistake, but we removed the video as soon as we became aware of her request, immediately (the video for which we only had oral consent at the time of its creation; we did not formalize it in writing, as we are now doing with all clients), (...). Nevertheless, we have proceeded to send her the document indicating that we have canceled her image from any social network via email and in the appropriate format."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within ten working days she may formulate any arguments she considers appropriate.

The complainant stated that "(...) Instagram only marks a message as 'Seen' when the recipient has read it; if it had been archived, it would not have been read. I was able to see this 'Seen' note (...). Regarding the claim that they do not manage anything through social media, this is also false; I attach more screenshots where they assist me without problem regarding questions about tattoo care. (...)"

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on November 4, 2023, for the purposes provided for in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be erased for compliance with a legal obligation established in the law of the Union or of the Member States that applies to the data controller;

f) personal data have been obtained in connection with the offering of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers processing the personal data of the data subject's request for erasure of any link to such personal data, or any copy or replica of the same.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by the law of the Union or of the Member States that applies to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1

would make impossible or seriously impede the achievement of the objectives of that processing, or e) for the establishment, exercise, or defense of legal claims.

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in the data protection regulations. Therefore, in this case, only the aspects related to the request for erasure from the claiming party will be analyzed and assessed, excluding the rest of the issues.

In this case, and taking into account the provisions of the first paragraph of this legal basis, it has been established that the claiming party sent a message through a social network to the responding party requesting the deletion of the video published in which their image appears.

During this procedure, the responding party states that the right was not exercised through the address established on their website, and that, for this reason, they did not respond to the right of erasure because the exercise had not been sent through the established channel and they had not been aware of the request. Although it is appropriate for the request to be directed to the address declared by the controller for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt

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The request made by any department or branch of the data controller is a valid destination for it, in accordance with Article 12 of the LODPGDD, which states: “The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opts for another means.”

In the present case, the responding party, having become aware of the request from the claimant during the processing of this file, has proceeded to address the requested right by removing the published video and has sent an informative letter to the claimant, thus fulfilling the provisions of Article 12.4 of the GDPR.

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is likewise obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the performance of additional actions by the data controller in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by Ms. A.A.A. against Ms. B.B.B. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring the performance of additional actions by the data controller.

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SECOND: TO NOTIFY this resolution to Ms. A.A.A. and Ms. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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